

From :

G. Buchayya Chowdari

Contesting Candidate of TDP from 51- Rajahmundry Rural Assembly Constituency.

To,

The Returning Officer,

51-Rajahmundry Rural Assembly Constituency,

Office of Tahasildar, Rajahmundry Rural.

Sir/Madam,

Subject :-GE 2019-Modal Code of Conduct-Monitoring of Election Expenditure of the contesting candidates-Booking of expenditure in respect of advertisement expenses to candidate's election expenditure account-Notice.

Reference :- Notice No. GE|MCC|2019, Dt 08-04-2019 communicated on 07-04-2019 by R.O. 51- Rajahmundry Rural Assembly Constituency.

With reference to the notice cited above dated 08-04-2019, it is stated that the District Media Certification and Monitoring Committee, East Godavari Dst. has observed that an advertisement dated 04-04-2019 was made by me in Eenadu Telugu Daily(Graameena Page) as if I have solicited the voters to caste their votes in my favour and that I have to include a sum of Rs.3630/- towards notional expenditure in my election expenditure register and calling for an explanation from your authority.

I emphatically state that I have not made any advertisement in Eenadu Telugu Daily on 04-04-2019 nor authorised the Eenadu Telugu Daily to make any advertisement soliciting the voters to cast their vote in my favour.

That as a matter of fact the alleged advertisement appearing on 04-04-2019 in Eenadu Telugu Daily Graameena Page is not an advertisement at all and it is only a news item dated 03-04-2019 published by Eenadu Graameena on 04-04-2019 on its own accord. I affirm that the said news item is only a general news item gathered and published by the paper on its own accord and the same will not fall under authorised paid news.

A reading of the entire news item nowhere disclose that I solicited any one of the voters to cast their vote in my favour in the on going election.

Therefore, I request your authority to drop the proceedings under the notice referred to above as there is no necessity to include the said amount of Rs. 3630/- as a paid news or an advertisement.

Date : 09-04-2019

Rajahmundry.

Yours Faithfully,

G. Buchayya Chowdary

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Contesting Candidate of TDP from 51- Rajahmundry Rural Assembly Constituency.

To,

The Returning Officer,

51-Rajahmundry Rural Assembly Constituency,

Office of Tahasildar, Rajahmundry Rural.

Sir/Madam,

Subject :-GE 2019-Modal Code of Conduct-Monitoring of Election Expenditure of the contesting candidates-Booking of expenditure in respect of print/Electronic/Social Media advertisement expenses to candidate's election expenditure account-Notice.

Reference :- Notice No. GE|MCC|2019, Dt 05-04-2019 communicated on by R.O. 51- Rajahmundry Rural Assembly Constituency.

With regard to notice under reference cited above calling upon me to give an explanation as to why a sum of Rs. 55,817/- shall not be included in my day to day election expenditure in respect of a program telecasted by TV9 channel dated 04/04/2019 under the caption TV9 shadow for a duration of 1270 sec , I am to submit the following explanation and objections for inclusion of the said notional expenditure of Rs. 55,817- in my election expenditure register.

1. At the outset I emphatically deny and dispute that I am the author of 'TV 9 Shadow programme' telecasted on 04/04/2019 in TV 9 channel.

G. Buchayya Chowdari

2. The said 'TV 9 Shadow programme' dated 04-04-2019 was telecasted under the caption of 'మోడరన్ టైంస్ బిల్డర్స్'.

3. I am a contesting candidate of TDP from 51- Rajahmundry rural assembly constituency which is one the segments of 8-Rajahmundry Parliamentary constituency (Lok-Sabha). It is an undisputed fact that Smt Maganti Rupa is the nominated candidate of TDP for 8-Rajahmundry Parliamentary constituency.

4. It is well known fact that the TV 9 Channel has been organising a programmes under the caption "TV9 SHADOW PROGRAMME" and its journalists have been touring and covering several assembly and parliamentary constituencies interacting and interviewing the contesting candidates and eliciting their views about their affiliated political parties and their individual prospects in getting elected on behalf of the parties nominated them and telecasting the same either by live telecast or by recorded telecast.

5. On 04/04/2019, one of the Journalists of "TV9 shadow programme" interviewed and interacted Smt Maganti Rupa, the contesting candidate from 8-Rajahmundry parliament constituency during her election campaign in 51-Rajahmundry rural constituency, one of the segments of 8-Rajahmundry parliamentary constituency and telecasted the programme in TV 9 channel.

6. It is pertinent to submit that none of the Journalists of 'TV9 shadow programme' team ever held any interview or interacted with me on 04/04/2019 and obtained my opinions and views or my prospects in the ensuing election for 51-Rajahmundry rural Assembly constituency and telecasted the same in TV9 Channel on 04/04/2019.

6. On a scrutiny of the "TV-9 shadow programme" for the entire duration of 1270 seconds telecasted period, it is crystal clear that I was neither interviewed nor interacted by TV9 journalist in eliciting my views about the prospects of the my party in 51-Rajahmundry rural Assembly constituency or my prospects in the ensuing elections. That I never appealed or solicited the voters of 51-Rajahmundry rural Assembly Constituency to cast their vote in my favour or infavour of Smt M. Rupa and there is not even a whisper about my soliciting votes in the entire "TV9 Shadow programme". To be more specific, the entire "Tv9 shadow program" telecasted on 04/04/2019 is

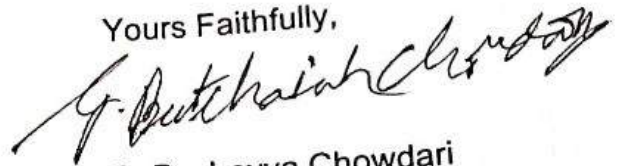
concentrated in interviewing the contesting candidate of 8-Rajahmundry Parliamentary constituency, Smt Manganti Rupa and no part of the telecast lead to an inference that I am the author of the said telecasted programme and therefore, by no stretch of imagination the proposed expenditure can be included in my day to day election expenditure.

I therefore request your authority not to include the proposed notional expenditure of Rs.55,817 in my election expenditure dated 04-04-2019 and drop the proceedings.

Date : 09-04-2019

Rajahmundry.

Yours Faithfully,



G. Buchayya Chowdari

From:

Gorantla Butchayya Chowdary
Contesting candidate of TDP

From: 51-Rajahmundry
Rural Assembly constituency,

To,

**BEFORE THE RETURNING OFFICER-
51- RAJAHMUNDY RURAL
ASSEMBLY CONSTITUENCY
OFFICE OF TAHSILDAR,
RAJAHMUNDY RURAL**

Sub: General elections 2019- 51- Rajahmundry Rural Assembly constituency-
Register of Election Expenditure - verification-discrepancy between -daily
expenditure register and observations of accounting team. Explanation

Fef: Notice No 1 /2019 dated 04/04/2019 of Returning Officer, 51-
Rajahmundry Rural Assembly constituency.

*Received
04/04/19
5-408*

OBJECTIONS SUBMITTED BY GORANTLA BUTCHAYYA CHOWDARY
CONTESTING CANDIDATE OF TDP - EXPENDITURE FROM 18-03-2019 TO
04-04-2019- INCLUSION OF RS: 2,45,900/- TOWARDS 1/3RD SHARE OF THE
TOTAL EXPENDITURE DATED 29-03-2019 DURING THE COURSE OF CM
ROAD SHOW. OBJECTED BY CANDIDATE FOR INCLUSION OF RS: 2,45,900
TOWARDS THE ALLEGED EXPENDITURE INCURRED ON 29-03-2019 ON THE
STRENGTH OF THE EXPENDITURE RECOMMENDED BY VIDEO VIEWING
TEAM - 50 RAJAHMUNDY CITY ASSEMBLY CONSTITUENCY DATED 30-03-
2019.

1. The objector submits that the video viewing teams/ shadow teams are formed under the authority of the Election Commission to monitor and arrive at the daily expenditure incurred by a contesting candidates in his area of constituency in order to restrict the money power In the general elections and such teams are required to submit day to day expenditure incurred by a particular candidate on the basis of the schedule of rates determined by The District Election Officer of each district.
2. The Collector and District Election Officer by his proceedings dated 15/03/2019 issued proceedings for adaptation of rates for the purpose of monitoring the expenditure during General Election of 2019. As per the said proceedings, the rates specified therein may be adopted for the purpose of expenditure monitoring.
3. At the outset, the objector submits that the CM-Road show held on 29-03-2019 was commenced near Shyamala Theater Rajahmundry within the Geographical area of 51-Rajahmundry^{Rural} Assembly constituency and a part of 8th Rajahmundry Lok-Sabha constituency and thereafter the CM-Road show was held at Two places within the Geo graphical area 50-Rajahmundry city

G. Butchayya Chowdary

Assembly constituency and a part of 8th Rajahmundry Lok-Sabha constituency. In so far as the CM -Road show held on 29-03-2019 within limits of 51- Rajahmundry Rural constituency and part of 8th Lok-Sabha constituency, the expenditure incurred can be included in the daily Election Expenditure of the particular candidates i.e., 51-Assembly constituency and 8th parliamentary constituency and expenditure involved and incurred by the contesting candidate of 50-Rajamahendravarm constituency and a part of No-8 Parliamentary constituency can never be included in the daily expenditure register of the contesting candidate of TTD of 51- Rajahmundry rural constituency. The shadow team erroneously appear to have recommended for inclusion of 1/3rd share of entire expenditure in the daily expenditure register of Gorantla Buchayya Chowdary, in respect of CM road show held in both 50-Rajahmundry city and 51-Rajamahendaravarm rural Assembly constituencies.

4. A bare look at the adoption of costs of items made by video team/ shadow team regarding the expenditure incurred by all the three contestants namely 50- Rajahmundry city constituency, 51 Rajahmundry rural constituency and 8th Parliamentary constituency disclose the over enthusiasm of the video team / shadow team and its indiscriminate inclusion of several items at their own estimates to increase the daily expenditure of the candidate as detailed below.

A) The list contains amount alleged have been incurred of sound system and sound boxes without identifying/ specifying the capacity of sound system and sound boxes or their make as against at the schedule of rates specified by the District Election Officer.

B) The shadow team over estimated the cost of the Garlands as against the actual market rate of Rs: 100/- for each unit.

C) Inclusion of value of kanduvas at Rs: 50/- for each item for a total quantity of 1500 at Rs: 75,000/- is highly exaggerated in as much as cost of each kanduva on a modest estimate in open market is only Rs: 15/- to Rs:20/-, with reference to S.No 5 of the price list issued by District Election Officer & Collector East Godavari district vide proceedings Ref: H4/64/2019, dated: .3.2019 and I have doubts on the quantity mention in the report of video viewing team.

D) The inclusion of value of flags and flexi banners of various dimensions in the expenditure is untenable for the reason that flags and flexi banners were already covered in daily expenditure registers as having been acquired at earlier stages by each candidate and properly accounted for as having been procured by the candidates earlier and needless to submit that they are reusable in nature and any reference to the expenditure alleged have been incurred on 29-03-2019 towards said items is untrue and untenable. Likewise the charges of video graph and photography included by the video team twice in the list is highly objectionable.

E) The inclusion of charges for multi color pamphlets of 3000 units at Rs: 30000 are absolutely incorrect.

F) The inclusion of charges of Rs: 50,000/- against payment to the 2 power generators (silence) is highly exaggerated whereas the actual rental charges for power generators, as per the price list of rates provided by the District Election Officer (Collector) is only Rs. 2000 / 12 hr.

(i) Coming to the vehicles alleged to have been used -

a) with regard to convoy of 4 wheelers of 15 units covered under registration Number AP 9G 393 is concern, the said convoy of 4 wheelers comprised of CM'S convey is meant and intended for the personal security of the CM and the same can never be treated as vehicles used for campaigning for the candidates.

b) Similarly the said car bearing number AP 05 EK 0999 is owned and used by contesting candidate Sri Gorantla Buchayya Chowdary for 51 Rajahmundry Rural Assembly constituency and even notational value of hire of the said vehicle can not be included in day to day expenditure of a contesting candidate except the cost of oil and salary of its driver. The shadow team even without specifying the registration numbers of vehicles on the pretext 'number not visible' went wrong in inclusion of their costs in the expenditure list. The shadow team over looked about the permissions obtained for plying certain vehicles for which the expenditure is already brought into the expenditure register of individual candidates submitted to the returning officer and went wrong including the expenditure again in the list submitted by it to the returning officer.

5. A comparison of the schedule of rates covered under proceedings of the District Election Officer dated 15-03-2019 and the rates adopted by the video team covering the CM'S road show dated 29/03/2019 irresistibly conclude that the rates adopted by the video teams are not only indiscriminate but also at their vims and fancies without followings the rules and guidelines.

6. I seriously dispute the inclusion of Rs: 2,45,900/- towards 1/3rd of total expenditure of Rs: 7,37,700 /- in my election expenditure register as if the same is incurred by me. The estimated expenditure proposed to be included on the basis of un- scientific data of video team and alleged to have been incurred by me in 50-Rajahmundry Assembly constituency is high objectionable while the fact remains that I am only accountable for the expenditure incurred by CM'S road show held on 29-03-2019 in my constituency namely 51-Rajahmundry rural constituency.

7. I therefore request the Returning Officer not to include the expenditure involved in 50- Rajahmundry Assembly constituency in my daily expenditure register.

Place: Rajahmundry,

Date: 06-04-2019.



Objector

(Gorantla Buchayya Chowdary)

51- Rajahmundry Rural

Assembly Constituency

From :

G. Buchayya Chowdari

Contesting Candidate of TDP from 51-Rajahmundry Rural Assembly Constituency.

To,

The Returning Officer,

51-Rajahmundry Rural Assembly Constituency,

Office of Tahasildar, Rajahmundry Rural.

Sir/Madam,

Subject :-GE 2019-Modal Code of Conduct-Monitoring of Election Expenditure of the contesting candidates-Booking of expenditure in respect of advertisement expenses to candidate's election expenditure account-Notice.

Reference :- Notice No. GE|MCC|2019, Dt 05-04-2019 communicated on 07-04-2019 by R.O. 51- Rajahmundry Rural Assembly Constituency.

With regard to notice under reference cited above calling upon me to give an explanation as to why a sum of Rs. 20640/- shall not be included in my day to day election expenditure in respect of an advertisement date 04-04-2019 appearing in Eenadu Telugu Daily, District Edition, I am to submit the following explanation and objections for inclusion of the said sum of Rs. 20640/- in my election expenditure register.

1. The advertisement dated 04-04-2019 was factually made and published in — (Rajamahendravam Graameena Page) of Eenadu Telugu Daily and not in Eenadu Telugu District Edition as stated in the notice under reference cited above.
2. That as per the standard tariff rates adopted by Ushodaya Publications, a division of Ushodaya Enterprises Pvt. Lt.d.(Eenadu), the charges for such advertisement in Rajahmundry Grameena Page is only Rs. 17/-(Rupees Seventeen Only) per each sq. cm. and not Rs. 86/- (Rupees Eighty Six)per each sq. cm. as stated in the notice under reference cited above.
3. That as per the standard tariff rates of Ushodaya Publications Pvt. Ltd.(Eenadu), I have paid consolidated amount in advance by way of cheque towards advertisement charges meant and intended for the publication of advertisement including the advertisement related 04-04-2019 under receipt number 192007023000072 dated 02-04-2019 and evidencing the same I am here with submitting xerox copy of the said receipt along with photocopy of advertisement date 04-04-2019. The expenditure incurred for the advertisement date 04-04-2019 has been already brought into my day to day election expenditure register

date 02-04-2019 as stated above and therefore there is neither need
necessity to add the said expenditure again in my expenditure register.
I therefore request your authority to drop the proceedings issued under the notice dated
05-04-2019 referred to above.

Date : 09-04-2019

Rajahmundry.

Yours Faithfully,

G. Buchayya Chowdary
G. Buchayya Chowdari

Enclosures:

1. Xerox copy of the receipt No.192007023000072 dated 02-04-2019.
2. Xerox copy of the advertisement dated 04-04-2019 in Rajamahendravam
Graameena Page of Eenadu Telugu Daily.